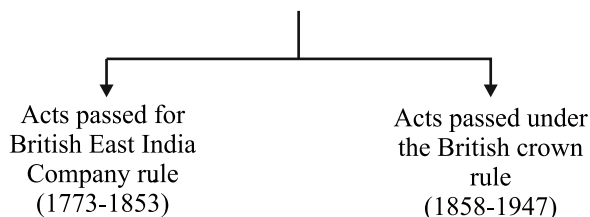


Indian Polity and Governance

The Constitutional Development of India

The Constitutional Development of India



Acts Passed for the British East India Company Rule (1773-1853)

Regulating Act of 1773 designated the governor of Bengal, Warren Hastings, to Governor General of Bengal and subsumed the Presidencies of Madras and Bombay under Bengal's control. *The Governor General was provided with an executive council of four to assist him in Military and Non - Military decisions which would be made by the majority of the council. *Governor General could vote only in case of tie. *A **Supreme Court** which had a Chief Justice and three other Judges was established at **Fort William in Calcutta** in the year 1774 by this Act. This Act prohibited the Servants of the company from engaging in private trade or accepting gifts and bribes from the Indians. *The British Government strengthened its control over the company through the Court of Directors (Governing body of The Company) to report on its revenue, civil and military affairs in India.

***Pitts India Act 1784** distinguished between the commercial and political functions of the company. ***Board of Control** was created for political matters and the **Court of Directors** controlled the commercial affairs. *Board of Control was comprised of 6 people.

***Act of 1786** provided that Governor General could overrule his council in matters of importance affecting the safety, peace or interest of the Empire in India. *Governor General was granted the powers of Commander-in-Chief. *Lord Cornwallis was the first Governor General to enjoy these powers.

***The Charter Act of 1793** further extended the commercial monopoly of the company for another 20 years. ***Charter Act of 1813** for the first time, made **provision of 1 Lakh rupee per year to be spent on the education** of Indians. It ended the

company's monopoly over trade, although the monopoly over trade of tea & trade with China continued.

***Charter Act of 1833** made the Governor General of Bengal the Governor General of India and vested in him all civil and military powers. ***Lord William Bentinck** became the first Governor General of India. *It ended the Activities of East India Company as a commercial body, which became purely an administrative body. *A **legal member (fourth member)** was included in the executive council of Governor General. ***Macaulay** was the first legal member.

***Charter Act of 1853** separated for the first time the legislative and executive functions of the Governor General's council. *It established a separate Indian (Central) legislative council for law making. *It introduced an open competition system for selection and recruitment of Civil Servants.

1. In which of the following Acts, the provision was made for the establishment of Supreme Court at Calcutta?

- (a) Regulating Act, 1773 (b) Pitt's India Act, 1784
(c) Charter Act, 1813 (d) Charter Act, 1833

U.P.P.C.S. (Mains) 2010

Ans. (a)

The provision for the establishment of Supreme Court at Fort William, Calcutta was made in the Regulating Act, 1773. The Court was established in 1774. Sir Elijah Impey was the first Chief Justice of this Supreme Court.

2. With reference to the establishment of Supreme Court, which of the statement is/are correct?

1. Supreme Court at Calcutta was established by the Regulating Act of 1773.

2. Lemaister was the first Chief Justice of this Court.

Select the correct answer using codes given below.

Codes :

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (a)

See the explanation of the above question.

3. Match list-I with list-II and select the correct answer from the code given below the lists :

List- I

A. Establishment of Board of Control

B. Establishment of Supreme Court

C. Permission to English Missionaries to work in India

D. Appointment of Law Member in Governor-General Council

List- II

1. Regulating Act, 1773

2. Pitt's India Act, 1784

3. Charter Act, 1813

4. Charter Act, 1833

Code :

	A	B	C	D
(a)	1	2	3	4
(b)	2	1	3	4
(c)	1	2	4	3
(d)	2	4	1	3

U.P.P.C.S (Pre) 2003

Ans. (b)

The matched pairs are as follows :

Regulating Act, 1773	–	Establishment of Supreme Court
Pitt's India Act, 1784	–	Establishment of Board of Control
Charter Act, 1813	–	Permission to English Missionaries to work in India
Charter Act, 1833	–	Appointment of Law Member in Governor General Council.

4. Which of the following led to the introduction of English Education in India?

1. Charter Act of 1813

2. General committee of public instruction, 1823

3. Orientalist and Anglicist Controversy

Select the correct answer using the code given below :

(a) 1 and 2 only

(b) 2 only

(c) 1 and 3 only

(d) 1, 2 and 3

I.A.S. (Pre) 2018

Ans. (d)

East India Company discouraged the orientalist education system and promoted western education system. In Charter Act 1813 there was also a provision that company should invest Rs 1 Lakh every year on the education of Indians. In 1823, General committee of public instruction was constituted which had responsibility

to grant 1 Lakh rupees. The Orientalist Anglicist Controversy was a controversy regarding nature of education that British east India company was to impart to the local populations in its territory. H.T. Prinsep and Dr. H.H. Wilson supported orientalist education and anglicist were led by Charles Trevelyan who advocated for imparting of western education through medium of english. During rule of Governor General Lord William Bentick (1828-35) on 7 March, 1835 the proposal of Lord Macaulay was accepted and English language was accepted as the medium of higher education.

5. By which Act, the British Parliament had abolished the monopoly of East India Company's trade in India except Tea and China trade?

(a) Charter Act of 1813

(b) Charter Act of 1833

(c) Charter Act of 1853

(d) Charter Act of 1873

U.P.R.O./A.R.O. (Mains) 2017

Ans. (a)

Trade monopoly of East India company was abolished by the Charter Act, 1813 except for trade in Tea and China. It asserted the sovereignty of the British Crown over the Indian territories held by the company. The Act also empowered local governments to impose taxes and punish those who did not pay. While Charter Act of 1833 abolished commercial role of the EIC and allowed EIC to perform political functions only, in future.

6. Which Act of British Parliament abolished the East India Company monopoly over trade in India?

(a) Regulating Act

(b) Pitt's India Act

(c) Charter Act of 1813

(d) None of the above

Uttarakhand P.C.S. (Pre) 2016

Ans. (c)

The Charter Act of 1813 deprived the company of its monopoly over trade with India but it still enjoyed its monopoly of trade with China and the trade in tea.

7. Consider the following statements about 'the charter Act of 1813':

1. It ended the trade monopoly of the East India Company in India except for trade in tea and trade with China.

2. It asserted the sovereignty of the British Crown over the Indian territories held by the company.

3. The revenues of India were now controlled by the British Parliament.